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2025-2026 Regular Sessions

IN SENATE

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Introduced by Sens. JACKSON, GONZALEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to updating provisions relating to dignity for all students

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 10 of the education law, as added by chapter 482 of
2 the laws of 2010, is amended to read as follows:

3 § 10. Legislative intent. The legislature finds that students' ability
4 to learn and to meet high academic standards, and a school's ability to
5 educate its students, are compromised by incidents of discrimination or
6 harassment including bullying, taunting or intimidation. It is hereby
7 declared to be the policy of the state to afford all students in public
8 schools an environment free of discrimination and harassment, whether in
9 the school building or on the internet. The purpose of this article is
10 to foster civility in public schools and to prevent and prohibit conduct
11 which is inconsistent with a school's educational mission.

12 § 2. Subdivisions 1, 2, 7 and 8 of section 11 of the education law,
13 subdivisions 1 and 2 as added by chapter 482 of the laws of 2010, subdivi-
14 sion 7 as amended and subdivision 8 as added by chapter 102 of the
15 laws of 2012, are amended and a new subdivision 11 is added to read as
16 follows:

17 1. "School property" shall mean in or within any building, structure,
18 athletic playing field, playground, parking lot, or land contained with-
19 in the real property boundary line of a public elementary or secondary
20 school; or in or on a school bus, as defined in section one hundred
21 forty-two of the vehicle and traffic law; or in or within a school
22 administrative building.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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2. "School function" shall mean a school-sponsored extra-curricular event or activity, or a school board or trustee meeting.

7. "Harassment" [~~and "bullying"~~] shall mean the creation of a hostile environment by conduct or by threats, intimidation or abuse, including cyberbullying, that (a) has or would have the effect of unreasonably and substantially interfering with a student's educational performance, opportunities or benefits, or mental, emotional or physical well-being; or (b) reasonably causes or would reasonably be expected to cause a student to fear for [~~his or her~~] their physical safety; or (c) reasonably causes or would reasonably be expected to cause physical injury or emotional harm to a student; or (d) occurs off school property and creates or would foreseeably create a risk of substantial disruption within the school environment, where it is foreseeable that the conduct, threats, intimidation or abuse might reach school property. Acts of harassment [~~and bullying~~] shall include, but not be limited to, those acts based on a person's actual or perceived race, color, weight, national origin, ethnic group, religion, religious practice, disability, sexual orientation, gender or sex. For the purposes of this definition the term "threats, intimidation or abuse" shall include verbal and non-verbal actions.

8. "Cyberbullying" shall mean harassment or bullying as defined in [~~subdivision seven of~~] this section, [~~including paragraphs (a), (b), (c) and (d) of such subdivision,~~] including but not limited to cell phones, email, social media or text messaging.

11. "Bullying" shall mean a pattern of repeated and deliberate aggressive acts intended to harm or humiliate another person who is smaller, weaker, younger or in any way more vulnerable than the bully, and may involve verbal attacks, teasing, physical attacks, threats of harm, sharing personal or private information about someone without their consent causing embarrassment, deliberate exclusion from activities, or other forms of intimidation. The deliberate targeting of a vulnerable person distinguishes "bullying" from "conflict" or other kinds of aggression.

§ 3. Subdivision 1 of section 12 of the education law, as amended by chapter 102 of the laws of 2012, is amended to read as follows:

1. No student shall be subjected to harassment or bullying by employees, school board members, school trustees, or students on school property or at a school function; nor shall any student be subjected to discrimination based on a person's actual or perceived race, color, weight, national origin, ethnic group, religion, religious practice, disability, sexual orientation, gender, or sex by school employees, school board members, school trustees, or students on school property or at a school function. Nothing in this subdivision shall be construed to prohibit a denial of admission into, or exclusion from, a course of instruction based on a person's gender that would be permissible under section thirty-two hundred one-a or paragraph (a) of subdivision two of section twenty-eight hundred fifty-four of this chapter and title IX of the Education Amendments of 1972 (20 U.S.C. section 1681, et. seq.), or to prohibit, as discrimination based on disability, actions that would be permissible under section 504 of the Rehabilitation Act of 1973.

§ 4. Paragraphs e, k and l of subdivision 1 of section 13 of the education law, as added by chapter 102 of the laws of 2012, are amended and two new paragraphs m and n are added to read as follows:

e. require the school, when an investigation reveals any such verified harassment, bullying or discrimination, to take prompt actions reason-

ably calculated to end the harassment, bullying or discrimination, eliminate any hostile environment, create a more positive school culture and climate, prevent recurrence of the behavior, and ensure the safety of the student or students against whom such harassment, bullying or discrimination was directed. Such actions shall be consistent with the guidelines created pursuant to subdivision four of this section and shall take into consideration whether notification of persons in parental relation to the student who is the subject of such harassment, bullying or discrimination is in the best interest of the student;

k. require each school, at least once during each school year, to provide all school employees, students and parents with a written or electronic copy of the school district's policies created pursuant to this section, or a plain-language summary thereof, including notification of the process by which students, parents and school employees may report harassment, bullying and discrimination and to post a written notification informing students about such policy and the name of the school employee designated to receive reports of harassment, bullying or discrimination in the school lobby and in every restroom used by students as well as other parts of the school where students are likely to see such posted notification. This subdivision shall not be construed to require additional distribution of such policies and guidelines if they are otherwise distributed to school employees, students and parents;

l. maintain current versions of the school district's policies created pursuant to this section on the school district's internet website, if one exists;

m. include safe, responsible use of the internet and electronic communications in the school district's policies;

n. develop such policies, procedures and guidelines to prevent students from being bullied, harassed or discriminated against by school board members and school trustees; and

§ 5. Subdivision 5 of section 14 of the education law, as amended by chapter 90 of the laws of 2013, is amended to read as follows:

5. ~~[The commissioner shall prescribe]~~ Prescribe regulations that school professionals applying on or after December thirty-first, two thousand thirteen for a certificate or license, including but not limited to a certificate or license valid for service as a classroom teacher, school counselor, school psychologist, school social worker, school administrator or supervisor or superintendent of schools shall, in addition to all other certification or licensing requirements, have completed training on the social patterns of harassment, bullying and discrimination, as defined in section eleven of this article, including but not limited to those acts based on a person's actual or perceived race, color, weight, national origin, ethnic group, religion, religious practice, disability, sexual orientation, gender or sex, the identification and mitigation of harassment, bullying and discrimination, and strategies for effectively addressing problems of exclusion, bias and aggression in educational settings.

§ 6. Section 15 of the education law, as amended by chapter 102 of the laws of 2012, is amended to read as follows:

§ 15. Reporting by commissioner and use of reports. 1. The commissioner shall create a procedure under which material incidents of harassment, bullying and discrimination on school grounds or at a school function are reported to the department at least on an annual basis. Such procedure shall provide that such reports shall, wherever possible, also delineate the specific nature of such incidents of harassment,

bullying and discrimination, [~~provided that the commissioner may comply with the requirements of this section through use of the existing uniform violent incident reporting system~~] including, but not limited to, whether such incidents were student-on-student, student-on-employee, or employee-on-student, the number of complaints dismissed and the basis for dismissal, the number of students, if any, who withdrew from the school following the filing of a complaint and prior to the next succeeding school year, the number of complaints resulting in any action taken, and the action taken, including student or employee training or education, student or employee discipline, or employee removal, leave of absence or retirement. In addition, the department may conduct research or undertake studies to determine compliance throughout the state with the provisions of this article.

2. The commissioner shall use such reports and data to identify schools and districts that are failing to meet the standards and objectives of this article. The commissioner shall promulgate policies and procedures for improving conditions at these schools to ensure proper training, support, and compliance with all requirements.

3. The commissioner shall deliver the report referenced in subdivision one of this section to the legislature every two years.

§ 7. Section 16 of the education law, as amended by chapter 102 of the laws of 2012, is amended to read as follows:

§ 16. Protection of people who report harassment, bullying or discrimination. Any person having reasonable cause to suspect that a student has been subjected to harassment, bullying or discrimination, by an employee, school board member, school trustee or student, on school grounds or at a school function, who, acting reasonably and in good faith, reports such information to school officials, to the commissioner or to law enforcement authorities, acts in compliance with paragraph e or i of subdivision one of section thirteen of this article, or otherwise initiates, testifies, participates or assists in any formal or informal proceedings under this article, shall have immunity from any civil liability that may arise from the making of such report or from initiating, testifying, participating or assisting in such formal or informal proceedings, and no school district or employee shall take, request or cause a retaliatory action against any such person who, acting reasonably and in good faith, either makes such a report or initiates, testifies, participates or assists in such formal or informal proceedings.

§ 8. The education law is amended by adding a new article 2-A to read as follows:

ARTICLE 2-A

STUDENT SUICIDE PREVENTION

Section 20. Legislative intent.

21. Definitions.

22. Policies, procedures, and guidelines.

23. Application.

24. Severability and construction.

§ 20. Legislative intent. The legislature finds and declares the following:

1. According to data from the federal centers for disease control and prevention as reported in the year two thousand sixteen, suicide is the second leading cause of death for youth and young adults ten to twenty-four years of age, inclusive, in both the United States and in New York state.

2. As children and teens spend a significant amount of their young lives in school, the personnel who interact with them on a daily basis are essential gatekeepers for recognizing warning signs of suicide and making the appropriate referrals for help.

3. In a national survey conducted by the Jason Foundation, a teacher was identified as the number one person to whom a student would turn to help a friend who might be suicidal. It is imperative that when a young person comes to a teacher for help, such teacher has the knowledge, tools, and resources to respond correctly.

4. In the year two thousand eighteen, the federal centers for disease control and prevention found in its Youth Risk Behavior Survey that lesbian, gay, and bisexual youth are almost four times more likely to seriously consider attempting suicide, have made a suicide plan, or have attempted suicide, than their heterosexual peers.

5. There are national hotlines available to help adults and youth, including lesbian, gay, bisexual, transgender, queer, or questioning (LGBTQ) youth, who are experiencing suicidal ideation or who are worried about a family member or peer who may be at risk, including the National Suicide Prevention Lifeline, the Crisis Text Line, the Trevor Project Lifeline, and TrevorChat.

6. According to the Family Acceptance Project, research has found that, for an LGBTQ youth, having at least one supportive adult can reduce the youth's risk of suicide.

7. New York state schools face the serious issues of students at high risk of suicide and death by suicide in the school communities. School personnel must be supported by clear policies and procedures, which serve as an easily-accessible roadmap, eliminate confusion over educator roles and the referral process, and equip educators with the tools to respond safely when a suicide does occur in the school community.

§ 21. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1. "Crisis situation" means a situation where a teacher or other local educational agency employee believes a student or other individual is in imminent danger of a suicide attempt.

2. "LGBTQ" means individuals who identify, with regards to gender, as being lesbian, gay, bisexual, transgender, queer, or questioning.

3. "Local educational agency" means a school district, board of cooperative educational services, school, or the education department.

4. "Suicide intervention" means specific actions schools can take in response to suicidal behavior by a student, including, but not limited to:

- a. student supervision;
- b. notification of parents or guardians;
- c. crisis situation response protocols;
- d. when and how to request an immediate mental health assessment or emergency services; and
- e. school re-entry procedures following a student mental health crisis.

5. "Suicide postvention" means planned support and interventions schools can implement after a suicide attempt or suicide death of a member of the school community that are designed to:

- a. reduce the risk of the spread of suicidal thoughts or intentions;
- b. provide support for affected students and school-based personnel;
- c. address the social stigma associated with suicide; and
- d. disseminate factual information about suicide and its prevention.

1 6. "Suicide prevention" means specific actions schools can take to
2 recognize and reduce suicidal behavior, including, but not limited to:
3 a. identifying risks and protective factors for suicide and suicide
4 warning signs;

5 b. establishing a process by which students are referred to a mental
6 and behavioral health provider for help;

7 c. making available school-based and community-based mental health
8 supports;

9 d. providing the location of available online and community suicide
10 prevention resources, including local crisis centers and hotlines;

11 e. adopting policies and protocols regarding suicide prevention,
12 intervention, and postvention, school safety, and response to crisis
13 situations;

14 f. training for school personnel who interact directly with students
15 in recognizing suicide risks and warning signs and how to refer students
16 for further assessment and evaluation; and

17 g. instruction to students in problem-solving and coping skills to
18 promote students' mental, emotional, and social health and well-being,
19 and instruction in recognizing and appropriately responding to signs of
20 suicidal intent in others.

21 7. "Mechanical restraints" means any device that restricts an individ-
22 ual's freedom of movement and that the individual cannot easily remove,
23 including but not limited to handcuffs and nylon or velcro restraints.

24 § 22. Policies, procedures, and guidelines. 1. The governing board or
25 body of every local educational agency that serves students in grades
26 seven to twelve, inclusive, shall, before the first day of August, two
27 thousand twenty-five, adopt policies, procedures, and guidelines on
28 student suicide prevention, intervention, and postvention for students
29 in such grades. Such policies, procedures, and guidelines shall be
30 developed in consultation with school and community stakeholders,
31 school-employed mental health professionals, and suicide prevention
32 experts, and shall include, but not be limited to:

33 a. methods to increase awareness of the relationship between suicide
34 and suicide risk factors, including, but not limited to:

35 i. mental health and substance use conditions;

36 ii. childhood abuse, neglect, or trauma;

37 iii. prolonged stress, including individual experiences such as bully-
38 ing, harassment, family or relationship stress, or other stressful life
39 events, as well as collective stressors such as systemic bias and
40 discrimination;

41 iv. exposure to another person's suicide, or sensationalized or graph-
42 ic accounts of suicide; and

43 v. previous suicide attempts or history of suicide within a student's
44 family;

45 b. identification of training opportunities on recognizing suicide
46 risks, and referral procedures available to school employees;

47 c. availability of expertise from school employees who have been
48 trained in recognizing suicide risks, and referral procedures;

49 d. how school employees should respond to suspicion, concerns, or
50 warning signs of suicide in students;

51 e. how school employees should respond to a crisis situation where a
52 student is in imminent danger to themself;

53 f. policies and protocols for communication with parents, including
54 those that specify what to do if parental notification is not in the
55 best interest of the student;

1 g. counseling services available within the school for students and
2 their families that are related to suicide prevention;

3 h. availability of information concerning crisis situation inter-
4 vention, suicide prevention, and mental health services in the community
5 for students and their families and school employees;

6 i. identification and development of partnerships with community
7 organizations and agencies for referral of students to health, mental
8 health, substance use, and social support services, including develop-
9 ment of at least one memorandum of understanding between the local
10 education agency and such an organization or agency in the community or
11 region, other than a law enforcement agency;

12 j. development of a culturally competent plan to assist survivors of
13 attempted suicide and to assist students and school employees in coping
14 with an attempted suicide or a suicide death within the school communi-
15 ty; and

16 k. development of any other related program or activity for students
17 or school employees.

18 2. The policies, procedures, and guidelines adopted pursuant to subdi-
19 vision one of this section shall specifically address the needs of high-
20 risk groups, including, but not limited to, the following:

21 a. youth who have lost a friend or family member to suicide;

22 b. youth with disabilities or with chronic health conditions, includ-
23 ing mental health and substance use conditions;

24 c. youth experiencing homelessness or in out-of-home settings, such as
25 foster care; and

26 d. LGBTQ youth.

27 3. The policies, procedures, and guidelines adopted pursuant to subdi-
28 vision one of this section shall be written to ensure that a school
29 employee acts only within the authorization and scope of such employee's
30 credential or license. Nothing in this section shall be construed as
31 authorizing or encouraging a school employee to diagnose or treat mental
32 health conditions unless such employee is specifically licensed and
33 employed to do so.

34 4. The policies, procedures and guidelines adopted pursuant to this
35 section shall ensure that school officials are solely responsible for
36 responding to student behavior. Such policies, procedures and guidelines
37 shall make clear that law enforcement involvement in addressing student
38 behavior should be the last resort and shall make clear that unless
39 otherwise authorized by state law:

40 a. Law enforcement officers and school resource officers shall not use
41 mechanical restraints on a student unless such restraints are necessary
42 to prevent imminent and serious physical injury to such student or
43 another person, and the use of such restraints is limited in duration to
44 the time period in which such student presents a risk of causing serious
45 physical injury to themselves or others; and

46 b. Any determination that a student requires hospital transport for a
47 mental health evaluation shall whenever practicable be made by a clin-
48 ically trained mental health professional. Such student shall be accom-
49 panied during such transport by a designated school employee, and such
50 person shall stay with the student until their parent or parent's desig-
51 nee arrives. The school shall be responsible for contacting the parent
52 when such hospital transport is needed.

53 5. Notwithstanding any other provision of law to the contrary, no
54 cause of action may be brought for any loss or damage caused by any act
55 or omission resulting from the implementation of the provisions of this
56 article, or resulting from any training, or lack of training, required

1 by this article. Nothing in this article shall be construed to impose
2 any specific duty of care.

3 6. To assist local educational agencies in developing policies for
4 student suicide prevention, the department shall develop and maintain
5 model policies, procedures, and guidelines in accordance with this
6 section to serve as a guide for local educational agencies. Such model
7 policies, procedures, and guidelines shall be posted within thirty days
8 of their completion on the department's internet website, along with
9 relevant resources and information to support schools in developing and
10 implementing the policies, procedures, and guidelines required under
11 subdivision one of this section.

12 7. The governing board or body of a local educational agency that
13 serves students in grades seven to twelve, inclusive, shall review, at
14 minimum every fifth year following the effective date of this article,
15 its policies, procedures, and guidelines on student suicide prevention
16 and, if necessary, update such policies, procedures, and guidelines.

17 § 23. Application. The provisions of this article shall apply to all
18 private and public educational institutions in New York state.

19 § 24. Severability and construction. The provisions of this article
20 shall be severable, and if any court of competent jurisdiction declares
21 any phrase, clause, sentence or provision of this article to be invalid,
22 or its applicability to any government agency, person or circumstance is
23 declared invalid, the remainder of this article and its relevant appli-
24 cability shall not be affected. The provisions of this article shall be
25 liberally construed to give effect to the purposes thereof.

26 § 9. Section 801-a of the education law, as amended by section 102 of
27 the laws of 2012, is amended to read as follows:

28 § 801-a. Instruction in civility, citizenship [~~and~~], character educa-
29 tion, digital citizenship, and media literacy.

30 1. For the purposes of this section, the following terms shall have
31 the following meanings:

32 a. "Tolerance", "respect for others", and "dignity" shall include
33 awareness and sensitivity to harassment, bullying, discrimination, and
34 civility in the relations of people of different races, weights,
35 national origins, ethnic groups, religions, religious practices, mental
36 or physical abilities, sexual orientations, genders, and sexes.

37 b. "Digital citizenship" shall mean a diverse set of skills related to
38 current technology and social media, including the norms of appropriate,
39 responsible, and healthy behavior and focuses on empowering learners to
40 use online resources, applications, and spaces to improve communities
41 and curate a positive and effective digital footprint.

42 c. "Media literacy" shall mean the ability to use media and to access,
43 analyze, evaluate, create, and act using all forms of communication and
44 encompasses the foundational skills that lead to digital citizenship.

45 2. The regents shall ensure that the course of instruction in grades
46 kindergarten through twelve includes a component on civility, citizen-
47 ship, and character education. Such component shall instruct students on
48 the principles of honesty, tolerance, personal responsibility, and
49 respect for others, with an emphasis on discouraging acts of harassment,
50 bullying, discrimination, observance of laws and rules, courtesy, digni-
51 ty, and other traits which will enhance the quality of their experiences
52 in, and contributions to, the community. Such component shall include
53 instruction of safe, responsible use of the internet and electronic
54 communications. The regents shall determine how to incorporate such
55 component in existing curricula and the commissioner shall promulgate
56 any regulations needed to carry out such determination of the regents.

~~[For the purposes of this section, "tolerance," "respect for others" and "dignity" shall include awareness and sensitivity to harassment, bullying, discrimination and civility in the relations of people of different races, weights, national origins, ethnic groups, religions, religious practices, mental or physical abilities, sexual orientations, genders, and sexes.]~~

3. The regents, in conjunction with the commissioner, shall ensure that the course of instruction in grades kindergarten through twelve includes a component on media literacy. Such component shall include instruction of internet safety, civility, and digital citizenship with a focus on the principles of safe, responsible use of the internet and electronic communications. The boards of education and trustees of the cities and school districts of the state shall require instruction to be given in media literacy by the teachers employed in the schools therein. If available, instruction in media literacy shall be provided by library media specialists employed by the schools therein.

4. The commissioner, in conjunction with the regents, shall incorporate existing state media literacy standards into the component described in subdivision two of this section and create a clear and coherent set of media literacy education standards, which shall include, but not be limited to, the following skills, experiences, and competencies:

a. reading experiences balanced between literature and informational texts, which include both print and digital sources;

b. integration and evaluation of content and information presented in diverse media and formats, including visual, quantitative, and oral;

c. use of technology and digital tools, including the internet, for writing and drawing to increase learning and communication and to interact and collaborate with others;

d. writing of informative and explanatory texts to examine and convey complex ideas and information clearly and accurately through the effective selection, organization, and analysis of content, including multimedia;

e. strategic use of digital media and visual displays to express information and enhance understanding of presentations;

f. the ability to assess how point of view or purpose shapes the content and style of a text, drawing on a wide range of global and diverse texts;

g. gathering of relevant information from multiple sources and assessing the credibility and accuracy of such sources, for the purpose of integrating such information in writing without plagiarizing;

h. effectively communicating conclusions and taking informed action based on such conclusions;

i. the ability to create, produce, respond, interpret, and connect with artistic work and techniques;

j. managing information with a focus on the ability to access and use information obtained from other people, community resources, and computer networks and using technology to acquire, organize, and communicate information by entering, modifying, retrieving, and storing data;

k. demonstration of digital citizenship by maintaining ethical decision making and behavior and avoid the spread of misinformation in the exchange and use of information;

l. use of digital tools to communicate and work with others to build knowledge, convey ideas, learn with others, create and revise collaborative products, support individual learning, and contribute to the learning of others;

1 m. use of digital tools to create and revise simple, complex, and
2 multimedia digital artifacts;

3 n. identification of ways other people put their own information into
4 online spaces;

5 o. the ability to explain how actions in online spaces can have conse-
6 quences in other spaces and the connection between the persistence of
7 data on the internet, personal online identity, and personal privacy;

8 p. actively managing digital presence and digital footprint to reflect
9 an understanding of the permanence and potential consequences of actions
10 in online spaces;

11 q. designing and implementing strategies that support safety and secu-
12 rity of digital information, personal identity, property, and physical
13 and mental health when operating in the digital world;

14 r. identifying types of cyberbullying and developing strategies to
15 combat cyberbullying and harassment; and

16 s. any additional media literacy standards outlined in state depart-
17 ment publications or in the codes, rules and regulations of the state of
18 New York, as deemed necessary.

19 5. The commissioner, in conjunction with the regents, shall update the
20 New York state professional teaching standards to incorporate media
21 literacy and educate library media specialists and teachers on the rele-
22 vant standards of media literacy so that library media specialists and
23 teachers can effectively incorporate such standards into their curric-
24 ulums.

25 6. The commissioner, in conjunction with the regents, shall annually
26 review the media literacy standards set forth in this section to ensure
27 such standards capture the full range of skills, experiences, and compe-
28 tencies that research indicates is necessary for media literacy, and
29 shall update such standards as necessary.

30 7. The media literacy standards set forth in this section shall serve
31 as an overview of the state's interdisciplinary approach to media liter-
32 acy education and shall emphasize the importance of media literacy for
33 civic readiness.

34 § 10. Subdivision 1 of section 2801 of the education law, as amended
35 by chapter 402 of the laws of 2005, is amended to read as follows:

36 1. a. For purposes of this section, [~~school property~~] the following
37 terms shall have the following meanings:

38 (i) "School property" means:

39 (A) in or within any building, structure, athletic playing field,
40 playground, parking lot, or land contained within the real property
41 boundary line of a public elementary or secondary school or within a
42 school administration building; or

43 (B) in or on a school bus, as defined in section one hundred forty-two
44 of the vehicle and traffic law[~~; and a school function shall mean~~].

45 (ii) "School function" means a school-sponsored or school-authorized
46 [~~extra-curricular~~] extra curricular event or activity or a school board
47 or trustee meeting, regardless of where such event or activity takes
48 place, including any event or activity that may take place in another
49 state.

50 b. This section shall also apply to cyberbullying, whether on or off
51 school property or at or away from a school function.

52 § 11. Subdivision 2 of section 3006-a of the education law, as added
53 by section 2 of subpart C of part EE of chapter 56 of the laws of 2015,
54 is amended and a new subdivision 4 is added to read as follows:

55 2. a. During each five-year registration period beginning on or after
56 July first, two thousand sixteen, an applicant for registration shall

1 successfully complete a minimum of one hundred hours of continuing
2 teacher and leader education, as defined by the commissioner. The
3 department shall issue rigorous standards for courses, programs, and
4 activities, that shall qualify as continuing teacher and leader educa-
5 tion pursuant to this section. For purposes of this section, a peer
6 review teacher, or a principal acting as an independent trained evalu-
7 ator, conducting a classroom observation as part of the teacher evalu-
8 ation system pursuant to section three thousand twelve-d of this article
9 may credit such time towards ~~his or her~~ their continuing teacher and
10 leader effectiveness requirements.

11 b. During each five-year registration period beginning on or after a
12 date which shall be determined by the commissioner, any teacher who is
13 an applicant for registration shall successfully complete a minimum of
14 five hours of professional development related to media literacy educa-
15 tion and any library media specialist shall complete a minimum of
16 fifteen hours of professional development related to media literacy
17 education, as defined by the commissioner. Such professional develop-
18 ment related to media literacy education shall be counted toward the one
19 hundred hours of continuing teacher and leader education required by
20 paragraph a of this subdivision. The commissioner shall require that:

21 (i) professional development related to media literacy education
22 incorporates the principles and practices of the department's culturally
23 responsive-sustaining framework;

24 (ii) professional development related to media literacy education is
25 provided by or in coordination with a library media specialist or an
26 employee from a school district's library system in every school
27 district;

28 (iii) library media specialists in every school district receive
29 specific training in how to provide professional development related to
30 media literacy education to teachers of all grade levels and subject
31 areas contained in their schools, which shall include instruction on how
32 to effectively integrate media literacy education into such teachers'
33 curricula; and

34 (iv) utilizing funds appropriated therefor, the department creates and
35 provides model curricula and teaching and professional development
36 resources which incorporate media literacy education on its website.

37 c. During each five-year registration period beginning on or after a
38 date which shall be determined by the commissioner, any teacher who is
39 an applicant for registration shall successfully complete a minimum of
40 five hours of professional development related to articles two and two-A
41 of this chapter. Such professional development shall be counted toward
42 the one hundred hours of continuing teacher and leader education
43 required by paragraph a of this subdivision. The commissioner shall
44 require that:

45 (i) professional development related to articles two and two-A of this
46 chapter incorporates the principles and practices of the department's
47 culturally responsive-sustaining framework;

48 (ii) professional development related to articles two and two-A of
49 this chapter is provided by or in coordination with a teacher or guid-
50 ance counselor in every school district; and

51 (iii) utilizing funds appropriated therefor, the department creates
52 and provides model curricula and teaching and professional development
53 resources which incorporate the principles and practices articulated in
54 articles two and two-A of this chapter on its website.

55 d. Nothing in this section shall limit the ability of local school
56 districts to agree pursuant to collective bargaining to additional hours

1 of professional development or continuing teacher or leader education
2 above the minimum requirements set forth in this section.

3 ~~[e.]~~ e. A certified individual who has not satisfied the continuing
4 teacher and leader education requirements shall not be issued a five-
5 year registration certificate by the department and shall not practice
6 unless and until a registration or conditional registration certificate
7 is issued as provided in subdivision three of this section. For purposes
8 of this subdivision, "continuing teacher and leader education require-
9 ments" shall mean activities designed to improve the teacher or leader's
10 pedagogical and/or leadership skills, targeted at improving student
11 performance, including but not limited to formal continuing teacher and
12 leader education activities. Such activities shall promote the profes-
13 sionalization of teaching and be closely aligned to district goals for
14 student performance which meet the standards prescribed by regulations
15 of the commissioner. To fulfill the continuing teacher and leader educa-
16 tion requirement, programs must be taken from sponsors approved by the
17 department, which shall include but not be limited to school districts,
18 pursuant to the regulations of the commissioner.

19 4. For the purposes of this section, "library media specialist" shall
20 mean an individual employed by a school district as a library media
21 specialist pursuant to section 91.2 of title eight of the codes, rules
22 and regulations of the state of New York.

23 § 12. This act shall take effect immediately.